

# STATE OF NORTH CAROLINA

File No.

0123-45-2026-CR-900123.00-AB-CDE/2201

Scan No.(s)

Saint Bartholomew and the Northern Reaches County

County

In The General Court Of Justice

☐ District ☐ Superior Court Division

## STATE VERSUS

Name And Address Of Petitioner (type or print full name)

Alexandrina-Katharine Montgomery-Vandenberg-Oyelaran y Fitzwilliam III  
12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B  
12345 Southwest Grandview Boulevard Northeast, Building 7, Apartment 4321-B  
Unincorporated Township of Long Hollow Crossing XX 01234-9999

Drivers License No.

State

Race

Sex

Date Of Birth

1991-04-17

Full Social Security No.

Age At Time Of Offense

## PETITION AND ORDER OF EXPUNCTION UNDER G.S. 15A-146(a) OR G.S. 15A-146(a1) (CHARGE(S) DISMISSED)

G.S. 15A-146, 15A-150

Name And Address Of Petitioner's Attorney For Expunction Petition

**NOTE TO PETITIONER:** List the arresting agency and any State or local government agency that has a record of your case. You **must** provide complete information for each agency. The clerk of superior court will send a copy of this order, if granted, to the agency name(s) and address(es) provided below. The clerk will **not** provide addresses for you. Do not list the courts, the State Bureau of Investigation, the Department of Adult Correction, or the Division of Motor Vehicles; if the order is granted, those agencies will be notified automatically. Do not list any private entity, like a company that provides criminal background checks. The clerk will not send a copy of this order to any entity that is not an agency of the State of North Carolina or one of its local governments. A private entity required to expunge records will be notified directly by the State or local agencies that distribute criminal justice information to that entity.

Name And Address Of Arresting Agency

Name And Address Of Other Agency (if any)

Name And Address Of Other Agency (if any)

☐ Check here to indicate that additional agencies and/or additional file nos. and offenses are listed on an AOC-CR-285 form that is attached to this petition. (attach form)

| File No.(s) | Date Of Arrest | Offense Description | Date Of Offense | Date Of Dismissal |
|-------------|----------------|---------------------|-----------------|-------------------|
|             |                |                     |                 |                   |

## PETITION TO EXPUNGE

I hereby petition for an expunction pursuant to G.S. 15A-146(a) or (a1) and certify as follows:

- In this court of the county named above I was charged with (a) misdemeanor(s) or felony(ies) (or an infraction under G.S. 18B-302(i) prior to December 1, 1999), the file number(s) of which is/are set out above.
- The charge(s) listed above was/were disposed of by a dismissal that was not a G.S. 15A-1008 dismissal for lack of capacity to proceed.
- (if you are petitioning to expunge multiple dismissals under G.S. 15A-146(a1), check one of the following)

☐ a. I was charged with multiple offenses, and all of the charges were dismissed. I therefore am requesting the expunction of all the charges.

☐ b. I was charged with multiple offenses, and while the charges listed above were dismissed, the following charges resulted in a conviction on the day of the dismissal or had not yet reached final disposition: \_\_\_\_\_

\_\_\_\_\_(insert file no.(s) and offense description(s) of charges that were not dismissed). I therefore am requesting the expunction only of the dismissed charges listed above, and not all of the charges.

☐ 4. There is a civil revocation record that resulted from the offense(s) I am seeking to expunge.

I certify that this petition has been filed in this case and that the information set forth above is a complete and accurate statement of the information on file in the office of the clerk of superior court.

☐ No charge listed above was dismissed as the result of compliance with a deferred prosecution agreement or a conditional discharge and dismissal.

**NOTE TO CLERK:** If this box is checked, do not assess the \$175.00 fee.

|      |                      |           |                                                                                       |
|------|----------------------|-----------|---------------------------------------------------------------------------------------|
| Date | Name (type or print) | Signature | <input type="checkbox"/> Petitioner<br><input type="checkbox"/> Petitioner's Attorney |
|------|----------------------|-----------|---------------------------------------------------------------------------------------|

(Over)

AOC-CR-287, Rev. 12/25 (replaced AOC-CR-264 for G.S. 15A-146(a) and (a1) petitions)

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## FINDINGS OF FACT

The Court makes the following findings of fact:

1. Petitioner was charged with those offenses indicated in the table on Side One.
2. Said charges were disposed of by a dismissal that was not a G.S. 15A-1008 dismissal for lack of capacity to proceed.
3. (If the defendant was charged with multiple offenses, check one of the following)

- ☐ a. The defendant was charged with multiple offenses, and all of the charges were dismissed.
- ☐ b. The defendant was charged with multiple offenses, and while the charges listed in the table on Side One were dismissed, there were additional charges that resulted in a conviction on the day of the dismissal or had not yet reached final disposition.

**NOTE TO COURT:** "If a person is charged with multiple offenses and any charges are dismissed, then that person or the district attorney may petition to have each of the dismissed charges expunged. If the court finds that all of the charges were dismissed, the court shall order the expunction. If the court finds that any charge resulted in a conviction on the day of the dismissal or had not yet reached final disposition, the court may order the expunction of any charge that was dismissed." G.S. 15A-146(a1).

- ☐ 4. There is a civil revocation record that resulted from the offense(s) the petitioner is seeking to expunge.
5. Expunction of the dismissed offense(s) listed on Side One ☐ should ☐ should not be granted. If not, it is because:

\_\_\_\_\_

\_\_\_\_\_

## ORDER

**Therefore, the Court hereby ORDERS:**

- ☐ 1. The petition is granted. It is ordered that any and all entries relating to the petitioner's apprehension, charge, trial, or conviction and any civil revocation of his/her drivers license resulting from the dismissed criminal charge shall be expunged from the records of the court. All law enforcement agencies, the Department of Adult Correction, the Division of Motor Vehicles, and any other State or local government agency identified on Side One and on any AOC-CR-285 form that is attached to this petition shall expunge from all official records any entries relating to the person's charge, conviction, if any, and any civil revocation of his/her drivers license resulting from the dismissed criminal charge. No agency shall expunge a record of a civil revocation entered pursuant to G.S. 20-16.2, no agency shall expunge a record of a civil revocation prior to the final disposition of any pending civil or criminal charge based upon the civil revocation, and the Division of Motor Vehicles shall not expunge records for which expunction is otherwise prohibited by G.S. 15A-151.
- ☐ 2. For the reason(s) identified in Finding No. 5, the petition is denied.

**NOTE TO CLERK:** If denied, file this Order in the case file. Upon expiration of the deadline for appeal from a denial of this Order, destroy any documentation provided with the petition, such as a criminal history report. If granted, send a certified copy of this Order to the petitioner at the address listed on Side One or an updated address as provided by the petitioner.

|      |                                         |                              |
|------|-----------------------------------------|------------------------------|
| Date | Name Of Presiding Judge (type or print) | Signature Of Presiding Judge |
|------|-----------------------------------------|------------------------------|

## CERTIFICATION BY CLERK

I hereby certify that this form is a true and complete copy of the original in this case, and if granted, a certified copy of this Order was sent on the date shown below to the petitioner, the State Bureau of Investigation, the Department of Adult Correction, the Division of Motor Vehicles, and to the arresting agency and any other State or local government agency identified on Side One and on any attachment to this petition.

|      |                      |                    |                                                                                                                          |             |
|------|----------------------|--------------------|--------------------------------------------------------------------------------------------------------------------------|-------------|
| Date | Name (type or print) | Signature Of Clerk | <input type="checkbox"/> Dep. CSC <input type="checkbox"/> Asst. CSC<br><input type="checkbox"/> Clerk Of Superior Court | <b>SEAL</b> |
|------|----------------------|--------------------|--------------------------------------------------------------------------------------------------------------------------|-------------|

**NOTE TO CLERK:** If granted, **always** send a certified copy of this Order under seal to the petitioner, to **all** the agencies listed in Certification By Clerk above, and to the NCAOC. Send copies for the arresting agency and additional agencies to the addresses provided by the petitioner. Send SBI, DAC, DMV, and NCAOC copies to:

|                                                                                                 |                                                                                                                           |                                                                                                                                                                                   |                                                                                                     |
|-------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|
| State Bureau of Investigation<br>Attn: Expunction Unit<br>3320 Garner Road<br>Raleigh, NC 27610 | NC Department of Adult Correction<br>Attn: Combined Records Section<br>4226 Mail Service Center<br>Raleigh, NC 27699-4226 | NC Division of Motor Vehicles, Driver and<br>Vehicle Services, Driver Assistance Branch<br>Attn: Hearings/Adjudication Unit<br>3118 Mail Service Center<br>Raleigh, NC 27699-3118 | NC Administrative Office of the Courts<br>Attn: Records Officer<br>PO Box 2448<br>Raleigh, NC 27602 |
|-------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------|

**NOTE TO PETITIONER:** If this petition is granted, the clerk of superior court will send you a certified copy of the final order for your records at the address listed on Side One. If you move, you must notify the clerk in writing of your change of address in order to receive a certified copy. After the case is expunged, the clerk of superior court will have no record of the case and will be unable to provide you with any documentation of the case. This includes the expunction order; it will be destroyed with the case file.